

25CHCV01297 25CHCV01297

County: los-angeles

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Case Number: 25CHCV01297 Hearing Date: July 2, 2026 Dept: F49

Dept. F49

Date: 7/2/26

Case Name: Levon Gevorgyan vs. Farmers Insurance

Exchange; and Does 1-50

Case No. 25CHCV01297

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 2, 2026

MOTION TO DEEM

REQUESTS FOR ADMISSION ADMITTED; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 25CHCV01297

Motion filed: 6/4/26

MOVING PARTY: Defendant Farmers Insurance Exchange

RESPONDING PARTY: None

NOTICE: OK

RELIEF REQUESTED: An order from this Court deeming the truth of each matter specified in Defendant Farmers Insurance Exchange's Requests for Admission, Set One, Nos. 1-13; and awarding sanctions in the amount of \$1,475.00.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from a dispute concerning insurance coverage for property loss allegedly sustained by Plaintiff Levon Gevorgyan ("Plaintiff") due to a plumbing failure in his home. On April 4, 2025, Plaintiff filed the Complaint against Defendants Farmers Insurance Exchange ("Farmers") and Does 1 through 50, alleging breach of contract and breach of the duty of good faith and fair dealing.

On June 11, 2025, Farmers filed an Answer.

On June 4, 2026, Farmers filed the instant motion to deem its Requests for Admission, Set One, Nos. 1-13 admitted (the "Motion").

No opposition papers have been filed.

ANALYSIS

A.

Motion to Deem Requests for Admission Admitted

"A defendant may make requests for admission by a party without leave of court at any time." (Code Civ. Proc. § 2033.020, subd. (a).) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party." (Code Civ. Proc. § 2033.250., subd. (a).)

If a party fails to serve timely responses

to requests for admission, the party to whom the requests are directed waives any objection to the requests, and the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified be deemed admitted. (Code Civ. Proc. § 2033.280, subds. (a), (b).) Unless the court “finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220,” the court must grant the motion. (Id., § 2033.280, subd. (c).)

The Court may, on motion, relieve a

party of the waiver of objection if the party subsequently serves a response that substantially complies with the statutory requirements and the failure to serve a timely response “was the result of mistake, inadvertence, or excusable neglect.” (Code Civ. Proc., § 2033.280, subd. (a).)

Farmers’ counsel attests that Farmers served its Requests for Admission, Set One on Plaintiff on March 25, 2026. (Boon Decl., ¶ 2, Exh. 1.) Proof of service attached to the Requests for Admission indicates that service was made that day via email. (Id., Exh. 1.) Written responses to the requests were accordingly due on April 28, 2026. (Code Civ. Proc., §§ 1010.6, 2033.250; Mot., at p. 1.) Farmers asserts that Plaintiff neither served any responses nor requested an extension to respond. (Mot., at p. 1.)

Based on the foregoing, the Court finds that Plaintiff has failed to serve timely responses to the requests for admission, thereby waiving any objection to the requests, including those based on privilege or work product.

Plaintiff has not opposed the Motion. There is no indication that Plaintiff has served a response to the requests for admission that substantially complies with statutory requirements. Plaintiff also has not provided justification for the failure to serve substantially compliant responses. The Court thus finds Plaintiff’s failure to serve timely responses inexcusable, and relief from the waiver under Code of Civil Procedure section 2033.280, subdivision (a) is not available.

Accordingly, the Court GRANTS the Motion.

B. Request for Sanctions

"It is mandatory that the court impose a monetary sanction ... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [filing a] motion." (Code Civ. Proc., § 2033.280, subd. (c).) Even when no opposition to a motion is filed, California Rules of Court, rule 3.1348, subdivision (a) permits the Court to award sanctions pursuant to the Discovery Act in favor of a party who files a motion to compel discovery.

Sanctions under these circumstances are mandatory.

The Court notes that the Notice of Motion indicates that Farmers requests sanctions in the amount of \$1,475.00, but Farmer's counsel's declaration indicates that the total fees incurred in connection with the Motion are \$3,060.00. Proper notice was given only of the request for \$1,475.00, and the Court limits its analysis to this amount.

Farmers' request for \$1,475.00 is calculated as five total hours' work of its counsel in "analyzing Plaintiff's discovery responses and related information, meeting and conferring with Plaintiff's counsel, and drafting" the Motion and supporting documents, at an hourly rate of \$295.00. (Boon Decl., ¶ 4.)

The Court finds counsel's hourly rate to be reasonable. However, given that no responses to the requests for admission were served, Farmer's counsel establishes no meet and confer efforts, and meet and confer is not required to move to deem requests for admission admitted, these activities are unsupported and not compensable. Moreover, this was a straightforward motion involving no complex issues. The Court accordingly determines the total reasonable time incurred in drafting the Motion and supporting declaration to be one hour. At an hourly rate of \$295.00, the total reasonable attorney fees are \$295.00.

The Court thus GRANTS IN PART the request for monetary sanctions.

CONCLUSION

The Court GRANTS Defendant Farmers Insurance Exchange's motion to deem its Requests for Admission, Set One, Nos. 1-13 admitted. The Court orders that the matters specified

in Defendant's Requests for Admission, Set One, Nos. 1-13 are deemed true.

Defendant's

request for sanctions is GRANTED IN PART. Plaintiff Levon Gevorgyan and his counsel of record are ordered to pay Defendant's counsel \$295.00 within 30 days.

Moving party to give notice.